

26SMCV01081 26SMCV01081

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-28

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Case Number: 26SMCV01081 Hearing Date: August 28, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

DAVID SAGHIAN,

Plaintiffs,

v.

SUPERIOR HOME DESIGN, INC., et al.,

Defendants.

Case No.: 26SMCV01081

Hearing Date: August 28, 2026

[TENTATIVE] order RE:

defendants' demurrer to and

motion to strike COMPLAINT

BACKGROUND

This is a breach of contract and negligence case. Plaintiff alleges he entered into a “written, oral and/or implied-in fact contract” with Defendants whereby Defendants agreed to supply labor and materials for installation of hardwood flooring. He claims that Defendants breached the contract by supplying defective materials as well as labor that was “not of the quality as those contracted for or accepted in the trade.”

Plaintiff also claims Defendants “expressly warranted and guaranteed all labor, materials, and products would be free from defects in workmanship and materials” for “a period of thirty (30) years.” Plaintiff further alleges that Defendants were negligent and failed to “exercise ordinary and reasonable care.” Plaintiff also sues for strict liability, claiming Defendants defectively designed and manufactured the hardwood flooring.

The operative complaint alleges seven claims for (1) breach of contract, (2) breach of express warranties, (3) breach of the implied warranty of merchantability, (4) breach of implied warranty of fitness for a particular purpose, (5) breach of third-party beneficiary contract, (6) negligence, and (7) strict liability.

This hearing is on Defendants’ demurrer to and motion to strike the Complaint. Defendants argue that all of Plaintiff’s claims are “founded upon a contract”, yet Plaintiff did not attach the contract, quote the terms verbatim or describe its legal effect. Additionally, Defendants argue that Plaintiff cannot allege a third-party beneficiary claim to contracts to which he is not a party. Further, Defendants argue that the Complaint is ambiguous and uncertain as to whether Defendants provided materials only or both labor and materials and therefore, there is uncertainty as to the terms of the warranties and how they were breached. As to the negligence claim, Defendants also argue that Plaintiff cannot assert a tort claim based on what is essentially a breach of contract. Further, Defendants move to strike Plaintiff’s punitive damages claim, arguing that there are no facts alleged that would support a finding of malice, oppression and fraud, and additionally as to the corporate Defendants, Plaintiff has not identified any managing agent who knew of or ratified any malicious, oppressive or fraudulent conduct by any of Defendants’ employees.

MEET AND CONFER

Code Civ. Proc. §§ 430.41 and 435.5 requires that before the filing of a demurrer or motion to strike, the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41(a), 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41(a)(2), 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41(a)(3), 435.5(a)(3).) Defendants submit the Declaration of David Krause-Lemon who attests that he reached out to Plaintiff’s counsel who failed to respond to his meet and confer request. The Court concludes Defendants have satisfied their meet and confer obligations, and admonishes Plaintiff’s counsel to meet and confer in good faith with Defendants.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents).) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must

appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”); *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 (“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”); *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Before even considering the merits of Defendants’ demurrer and motion to strike, the Court first addresses Plaintiff’s argument that the demurrer and motion to strike are untimely. Plaintiff represents that it substitute served Defendants Superior Home Design, Inc. and Bel Air Floors, Inc. on April 9, 2026, and on Zahal Mansur and Michal Mansur on April 13, 2026. Accordingly, their responsive pleadings were due no later than May 11, 2026 and May 13, 2026, respectively. Defendants did not respond by these deadlines.

Meanwhile, Defendants argue that Plaintiff “hid” the fact that they had been served and failed to file proofs of service. Defendants’ counsel reached out to Plaintiff three times to inquire if service had been made but Plaintiff did not respond, until one day after the deadline for a responsive pleading had passed. At that point, Plaintiff then said that Defendants’ response was overdue but Plaintiff would give them an additional two days to “answer” before Plaintiff requested entry of default.

Plaintiff was required to file proofs of service with the Court within 60 days of the filing of his Complaint. California Rule of Court, Rule 3.110(b) provides that “[t]he complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” (Emphasis added.) Plaintiff did not file the proofs of service until he filed them as exhibits to his opposition to the demurrer. The Complaint was filed on February 27, 2026, and any proofs of service should have been filed with the Court by April 28, 2026. Plaintiff filed the proofs of service on July 22, 2026.

Notwithstanding, Rule 3.110 does not provide that the failure to file the proofs of service invalidates service. Rather, the Rule only allows the Court to set an order to show cause hearing to determine whether sanctions should be imposed on Plaintiff to file the proofs within the 60 day deadline.

Defendants do not argue that service was defective. Accordingly, Defendants were required to respond by May 11 and May 13. There is no dispute that Defendants failed to do so.

Defendants instead argue that Plaintiff granted them an extension to June 3, after which they filed a declaration for an automatic thirty day extension. In opposition, Plaintiff argues that his grant of an extension was conditioned on Defendants’ filing an answer, not a demurrer.

In reply, Defendants argue that any such conditions on an extension request would violate the rules of civility. Defendants cite to Local Rules of Court, Rule 3.26, Appx. 3.A (Guidelines for Civility in Litigation), subd. (a)(5) which states “[a] lawyer should not, by granting extensions, seek to preclude an opponent’s substantive rights, such as his or her right to move against a complaint”. Defendants also cite to Section 1 of this Department’s rules which state: “The court expects all attorneys and parties to grant reasonable requests for professional courtesies, such as requests for reasonable extensions of time for deadlines to respond to pleadings, discovery or other matters.”

Defendants are simply wrong that Plaintiff could not have conditioned his grant of an extension on Defendants' filing an answer rather than a responsive pleading. That is done all the time. By the time the extension was granted, Defendants had failed to respond, and arguably should have been defaulted. Local Rules of Court, Rule 3.26 only precludes conditions to requests for extension that are "unfair and extraneous". The condition Plaintiff imposed on his extension was neither unfair nor extraneous. The condition is no different than in a case where a responding party to a discovery request blows past a response deadline, and the propounding party allows them an extension to respond, but only if they waive all objections, which is also done all the time. Accordingly, Defendants had until June 3 to file an answer, and there is no dispute they failed to do so.

Defendants also rely on a request for automatic extension they filed on June 2. But at that point, Defendants' deadline to file a demurrer had already passed. A demurring party cannot file a request for automatic extension after the deadline to file a demurrer.

In addition, to qualify for automatic extension, Defendants have to show that they made a good faith attempt to meet and confer with Plaintiff five days before their responsive pleading was due. Assuming that their responsive deadline was June 3, 2026 (based on Plaintiff's grant of an extension to this date), they have to have attempted to meet and confer with Plaintiff five days earlier, or by May 29, 2026. They could not have conceivably done so because they claim they did not know service had been effected until June 1, 2026. Accordingly, the declaration Defendants filed to seek the automatic extension was simply false. Because there was no automatic extension, Defendants' demurrer and motion to strike are untimely.

CONCLUSION AND ORDER

Based on the foregoing, the Court **OVERRULES** the demurrer and **DENIES** the motion to strike. The Court sets an order to show cause ("OSC") hearing on September 18, 2026 at 8:30 a.m. to determine whether sanctions should be imposed on Plaintiff for failure to file the proofs of service within the deadline set forth in Rule 3.110 and whether sanctions should be imposed on Defendants and their counsel for filing a false declaration for automatic extension.

IT IS SO ORDERED.

DATED: August 28, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court